

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

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WALTER CORDERO,

SUMMONS

Plaintiff(s),

Plaintiff resides at:
143 West 93rd, Street,
Basement
New York, New York 10025

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KIRILL OSTROVSKIY,
SHIELD# 16731, POLICE OFFICER KEVIN BRABAZON,
SHIELD # 23726 OF TRANSIT DISTRICT 03, AND JOHN
AND JANE DOE POLICE OFFICERS OF THE NEW YORK
POLICE DEPARTMENT,

Defendant(s),
-----X

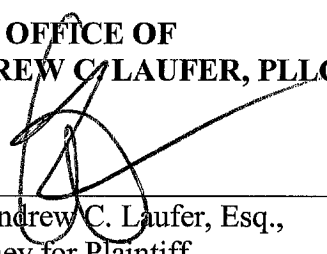
To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within 20 days after service of this summons or within 30 days after the service is complete if this summons is not personally delivered to you within the state of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

The basis of the venue designated is the place of incident.

Dated: New York, New York
December 14, 2016

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**


By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

DEFENDANT'S ADDRESS

THE CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

NEW YORK CITY POLICE DEPARTMENT AND JOHN
AND JANE DOE POLICE OFFICERS OF THE NEW YORK
POLICE DEPARTMENT
c/o CITY OF NEW YORK
100 Church Street, 4th Floor
New York, New York 10007

POLICE OFFICER KIRILL OSTROVSKIY,
SHIELD# 16731 and POLICE OFFICER KEVIN BRABAZON,
SHIELD # 23726 OF TRANSIT DISTRICT 03
Mezzanine 145 St. and
St. Nicholas Avenue Subway Station,
New York, NY 10019

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

Index No.:

-----X
WALTER CORDERO,

Plaintiff(s),

-against-

**VERIFIED
COMPLAINT**

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KIRILL OSTROVSKIY,
SHIELD# 16731, POLICE OFFICER KEVIN BRABAZON,
SHIELD # 23726 OF TRANSIT DISTRICT 03, AND JOHN
AND JANE DOE POLICE OFFICERS OF THE NEW YORK
POLICE DEPARTMENT,

Defendant(s),
-----X

Plaintiff, by and through his attorney, Law Office of Andrew C. Laufer, PLLC complaining
of the defendants herein, upon information and belief, respectfully show to this Court, and allege
as follows:

PRELIMINARY STATEMENT

1. That at all times hereinafter mentioned the plaintiff was a resident of the County of New York, City and State of New York.
2. That at all times hereinafter mentioned the defendant, THE CITY OF NEW YORK was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
3. That at all times hereinafter mentioned the defendant, NEW YORK CITY POLICE DEPARTMENT was and is a municipal corporation, duly organized and existing under by virtue of the laws of the State of New York.
4. That at all times hereinafter mentioned the defendants, POLICE OFFICER KIRILL OSTROVSKIY, SHIELD# 16731, POLICE OFFICER KEVIN BRABAZON, SHIELD # 23726 OF TRANSIT DISTRICT 03, AND JOHN AND JANE DOE POLICE OFFICERS OF THE

NEW YORK POLICE DEPARTMENT, were and still are employed with the NEW YORK CITY POLICE DEPARTMENT.

5. That at all time herein mentioned the defendant officers were acting within the scope and course of their employment with the New York Police Department, and under color of state law.

6. That at all times herein mentioned, all of the actions of the officers alleged herein were done within the scope and course of their employment with the New York Police Department, and under color of the state law.

7. That all of the causes of action pleaded herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FIRST CAUSE OF ACTION FOR VIOLATION OF PLAINTIFF'S RIGHTS UNDER THE
FOURTH, FIFTH AND FOURTEENTH AMENDMENTS TO THE UNITED STATES
CONSTITUTION PREDICATED UPON THE USE OF EXCESSIVE FORCE UPON
PLAINTIFF

8. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

9. That on or about September 4, 2015, at approximately 11:00 p.m., Defendants POLICE OFFICER KIRILL OSTROVSKIY, SHIELD# 16731, POLICE OFFICER KEVIN BRABAZON, SHIELD # 23726 OF TRANSIT DISTRICT 03, AND JOHN AND JANE DOE POLICE OFFICERS OF THE NEW YORK POLICE DEPARTMENT, jointly and severally in their capacity as police officers, wrongfully seized, assaulted, victimized, and battered the Plaintiff about his person, causing him physical pain and mental suffering. At no time did Defendants have legal cause to assault, batter, victimize, seize or touch Plaintiff, nor did Plaintiff consent to this excessive and illegal touching nor was or privileged by law.

10. As a result of the aforementioned actions, Defendants POLICE OFFICER KIRILL OSTROVSKIY, SHIELD# 16731, POLICE OFFICER KEVIN BRABAZON, SHIELD # 23726 OF TRANSIT DISTRICT 03, AND JOHN AND JANE DOE POLICE OFFICERS OF THE NEW YORK POLICE DEPARTMENT deprived Plaintiff of the right to be free from the use of excessive force secured by the Constitution and Laws of the United States of America and the Fourth and Fourteenth Amendments.

11. As a result of the aforementioned actions, Defendants deprived Plaintiff of his right against the use of excessive force against their persons secured by the Constitution and Laws of the United States of America and the Fifth and Fourteenth Amendments.

12. The aforementioned acts of Defendants were intentional, willful and malicious and performed with a reckless disregard for and deliberate indifference to Plaintiff's rights.

13. That by reason of the excessive force incurred by the Plaintiff resulting from Defendants unlawful acts, Plaintiff was subjected to great indignities, humiliation and ridicule in being so detained, and was greatly injured in his credit and circumstances and was prevented and hindered from performing and transacting his necessary affairs and were caused to suffer much pain in both mind and body, and to sustain economic loss, and was otherwise damaged.

14. The aforescribed constitutional violations are all actionable under and pursuant to 42 U.S.C. §§ 1981, 1983, 1985, 1986.

SECOND CAUSE OF ACTION AGAINST DEFENDANT CITY
MONELL CLAIM PURSUANT TO 42 U.S.C § 1983

15. Plaintiff repeats and realleges each and every allegation contained herein as if fully set forth at length herein.

16. All of the acts and omissions by the individual Defendants, described above were carried

out pursuant to overlapping policies and practices of the CITY which were in existence at the time of the conduct alleged herein and were engaged in with the full knowledge, consent and cooperation and under the supervisory authority of Defendants CITY and the NEW YORK CITY POLICE DEPARTMENT (NYPD).

17. Defendants CITY and NYPD, by their policy-making agents, servants and employees, authorized sanctioned and/or ratified the individual Defendants' wrongful acts and/or failed to prevent or stop those acts and/or allowed those acts to continue.

18. Defendants' POLICE OFFICER KIRILL OSTROVSKIY, SHIELD# 16731, POLICE OFFICER KEVIN BRABAZON, SHIELD # 23726 OF TRANSIT DISTRICT 03, AND JOHN AND JANE DOE POLICE OFFICERS OF THE NEW YORK POLICE DEPARTMENT, assaulted, battered, and victimized Plaintiff in the absence of any evidence of probable cause or reasonableness to do so, notwithstanding their knowledge that said assault and battery would jeopardize Plaintiff's liberty, well-being, safety and constitutional rights.

19. At all times mentioned herein, said police officer was acting under color of law, to wit: the statutes, ordinances, regulations, policies and customs and usage of the State of New York and/or City of New York.

20. On or about September 4, 2015, Defendants did assault and commit a battery and grab the persons of the Plaintiff without probable cause to do so. They did physically seize the person of the Plaintiff during the arrest process in an unlawful, unreasonable, and excessive manner.

21. The Plaintiff was assaulted, battered, and victimized without the Defendants' possessing probable cause to do so.

22. The above actions of Defendants resulted in the Plaintiff being deprived of the following rights under the United States Constitution.

- a. Freedom from assault to his person.
- b. Freedom from battery to his person.
- c. Freedom from the use of excessive force during the arrest process.

23. The Defendants subjected Plaintiff to such deprivations, either in a malicious or reckless disregard of the Plaintiff's rights.

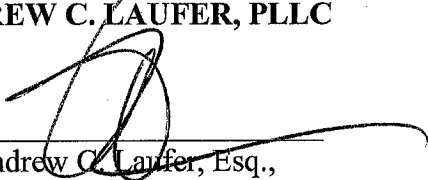
24. Defendant CITY has grossly failed to train and adequately supervise its police officers in the fundamental law of arrest, search and seizure especially when it's police officers where an individual, especially as here has not resisted arrest, that its police officers should only use reasonable force to effectuate an arrest.

25. The direct and proximate results of the Defendants' acts are that Plaintiff suffered severe and permanent injuries of a physical and psychological nature. He was forced to endure pain and suffering to his detriment.

WHEREFORE, plaintiff demands judgment against defendants, and each of them, on all of the foregoing causes of action, in the form of compensatory damages for his pain and suffering, loss of enjoyment of life, and economic loss, in an amount that exceeds the jurisdictional limits of all lower courts that otherwise would have jurisdiction in the matter, and plaintiff further demands punitive damages on all causes of action, in an amount to be determined by the trier of fact, together with attorney's fees, and together with costs and disbursements.

Dated: New York, New York
December 14, 2016

**LAW OFFICE OF
ANDREW C. LAUFER, PLLC**



By: Andrew C. Laufer, Esq.,
Attorney for Plaintiff
255 W 36th Street, Suite 1104
New York, New York 10018
(212)422-1020

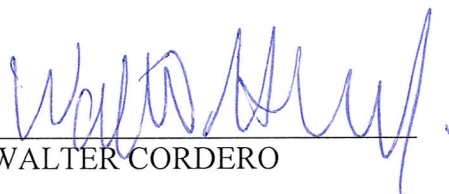
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)
) ss.:
COUNTY OF NEW YORK)

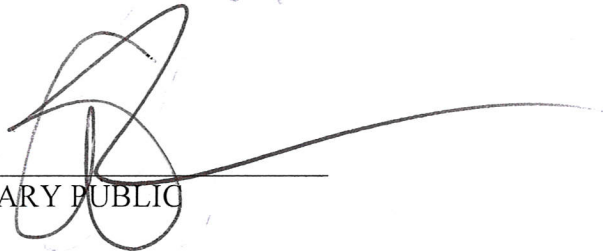
WALTER CORDERO, individually, being duly sworn, deposes and states as follows:

I am the Plaintiff in the above-entitled action and therefore am fully familiar with the circumstances surrounding this situation. I have read the foregoing Summons and Complaint, and know the contents thereof; that the same is true to my knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters I believe them to be true.

Dated: New York, New York
 December 14, 2016


WALTER CORDERO

Sworn to and subscribed before me
on the 14, day December, 2016



NOTARY PUBLIC

Andrew Charles Laufer
Notary Public, State of New York
No. 01LA5087616
Qualified in Nassau County
Commission Expires Nov. 03, 2018 X17

WALTER CORDERO,

Plaintiff,

-against-

THE CITY OF NEW YORK, NEW YORK CITY POLICE
DEPARTMENT, POLICE OFFICER KIRILL OSTROVSKIY,
SHIELD #16731, POLICE OFFICER KEVIN BRABAZON,
SHIELD #23726 OF TRANSIT DISTRICT 03, AND JOHN
AND JANE DOE POLICE OFFICERS OF THE NEW YORK
POLICE DEPARTMENT,

Defendants,

SUMMONS AND COMPLAINT

LAW OFFICE OF ANDREW C. LAUFER

Attorney(s) for Plaintiff

Office and Post Office Address
255 W. 36th Street, Suite 1104
New York, NY 10018

Tel: (212) 422 1020
Fax: (212) 422 1069

To:

Signature (Rule 130-1.1-a)

Print name beneath

Service of a copy of the within is hereby admitted.

Dated:

Attorney(s) for:

PLEASE TAKE NOTICE:

☐ NOTICE OF ENTRY

that the within is a (certified) true copy of a
duly entered in the office of the clerk of the within named court on

☐ NOTICE OF SETTLEMENT

that an order of which the within is a true copy
will be presented for settlement to the HON one of the judges of the
within named Court at

on at M.

Dated,

Yours, etc.

Law Office of Andrew C. Laufer